

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 795

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO OBSCENE MATERIAL AND LEWD MATTER; AMENDING SECTION 18-4101, IDAHO CODE, TO REVISE A DEFINITION; AMENDING SECTION 52-103, IDAHO CODE, TO REVISE A DEFINITION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-4101, Idaho Code, be, and the same is hereby amended to read as follows:

18-4101. DEFINITIONS. The following definitions are applicable to this act:

(A) "Obscene material" means any matter:

(1) Which the average person, applying contemporary community standards, would find, when considered as a whole, appeals to the prurient interest; and

(2) Which depicts or describes patently offensive representations or descriptions of:

(a) Ultimate sexual acts, normal or perverted, actual or simulated; or

(b) Masturbation, excretory functions, or lewd exhibition of the genitals or genital area.

Nothing herein contained is intended to include or proscribe any matter which, when considered as a whole, ~~and in the context in which it is used,~~ possesses serious literary, artistic, political or scientific value.

In prosecutions under this act, where circumstances of production, presentation, sale, dissemination, or publicity indicate that the matter is being commercially exploited by the defendant for the sake of its prurient appeal, such evidence is probative with respect to the nature of the matter and can justify the conclusion that, in the context in which it is used, the matter has no serious literary, artistic, political, or scientific value.

(B) "Prurient interest" means a shameful or morbid interest in nudity, sex, or excretion, which goes substantially beyond customary limits of candor in description or representation of such matters. If it appears from the character of the material or the circumstances of its dissemination that the subject matter is designed for a specially susceptible audience or clearly defined deviant sexual group, the appeal of the subject matter shall be judged with reference to such audience or group.

(C) "Matter" or "material" means any book, magazine, newspaper, or other printed or written material; or any picture, drawing, photograph, motion picture, or other pictorial representation; or any statue or other figure; or any recording, transcription, or mechanical, chemical, or electrical reproduction; or any other articles, equipment, machines, or materials.

1 (D) "Person" means any individual, partnership, firm, association,
2 corporation, or other legal entity; or any agent or servant thereof.

3 (E) "Distribute" means to transfer possession of, whether with or with-
4 out consideration, by any means.

5 (F) "Knowingly" means having actual or constructive knowledge of the
6 character of the subject matter or live conduct. A person shall be deemed to
7 have constructive knowledge of the character of the subject matter or live
8 conduct if he has knowledge of facts which would put a reasonable and prudent
9 man on notice as to the suspect nature of the matter, and the failure to in-
10 spect the contents is either for the purpose of avoiding such disclosure or
11 is due to reckless conduct.

12 (G) "Reckless conduct" is conduct which consciously disregards a sub-
13 stantial and unjustifiable risk that matter may be obscene. The risk must be
14 of such a nature and degree that, considering the nature and purpose of the
15 actor's conduct and the circumstances known to him, its disregard involves
16 a gross deviation from the standard of conduct that an average law-abiding
17 person would observe in the actor's situation under like circumstances.

18 (H) "Exhibit" means to show or display.

19 (I) "Obscene live conduct" means any physical human body activity,
20 whether performed or engaged in alone or with other persons, including but
21 not limited to singing, speaking, dancing, acting, simulating, or pantomim-
22 ing, where:

23 (1) The average person, applying contemporary community standards,
24 would find such conduct, when considered as a whole, appeals to the
25 prurient interest; and

26 (2) The conduct is patently offensive because it consists of:

27 (a) Ultimate sexual acts, normal or perverted, actual or simu-
28 lated; or

29 (b) Masturbation, excretory functions, or lewd exhibition of the
30 genitals or genital area.

31 Nothing herein contained is intended to include or proscribe any con-
32 duct which, when considered as a whole, and in the context in which it is
33 used, possesses serious literary, artistic, political or scientific value.
34 In prosecutions under this act, where circumstances of production, presen-
35 tation, advertising, or exhibition indicate that live conduct is being com-
36 mercially exploited by the defendant for the sake of its prurient appeal,
37 such evidence is probative with respect to the nature of the conduct and can
38 justify the conclusion that, in the context in which it is used, the matter
39 has no serious literary, artistic, political or scientific value. Nothing
40 herein contained is intended to include or proscribe the breastfeeding of a
41 child or the expression of breast milk for the purpose of feeding a child.

42 SECTION 2. That Section 52-103, Idaho Code, be, and the same is hereby
43 amended to read as follows:

44 52-103. MORAL NUISANCES -- DEFINITIONS. As used in title 52, Idaho
45 Code, relating to moral nuisances.

46 (A) "Knowledge" or "knowledge of such nuisance" means having knowledge
47 of the contents and character of the patently offensive sexual conduct which
48 appears in the lewd matter, or knowledge of the acts of lewdness, assigna-
49 tion, or prostitution which occur on the premises.

1 (B) "Lewd matter" is synonymous with "obscene matter" and means any
2 matter:

3 (1) which the average person, applying contemporary community stan-
4 dards, would find, when considered as a whole, appeals to the prurient
5 interest; and

6 (2) which depicts or describes patently offensive representations or
7 descriptions of:

8 (a) ultimate sexual acts, normal or perverted, actual or simu-
9 lated; or

10 (b) masturbation, excretory functions, or lewd exhibition of the
11 genitals or genital area.

12 Nothing herein contained is intended to include or proscribe any matter
13 which, when considered as a whole, ~~and in the context in which it is used,~~
14 possesses serious literary, artistic, political or scientific value.

15 (C) "Lewdness" shall have and include all those meanings which are as-
16 signed to it under the common law.

17 (D) "Matter" means a motion picture film or a publication or both.

18 (E) "Moral Nuisance" means a nuisance which is injurious to public
19 morals.

20 (F) "Motion picture film" shall include any:

21 (1) film or plate negative;

22 (2) film or plate positive;

23 (3) film designed to be projected on a screen for exhibition;

24 (4) films, glass slides or transparencies, either in negative or posi-
25 tive form, designed for exhibition by projection on a screen.

26 (5) video tape or any other medium used to electronically reproduce im-
27 ages on a screen.

28 (G) "Person" means any individual, partnership, firm, association,
29 corporation, or other legal entity.

30 (H) "Place" includes, but is not limited to, any building, structure or
31 places, or any separate part or portion thereof, whether permanent or not, or
32 the ground itself.

33 (I) "Publication" shall include any book, magazine, article, pamphlet,
34 writing, printing, illustration, picture, sound recording, or a motion pic-
35 ture film which is offered for sale or exhibited in a coin-operated machine.

36 (J) "Sale" means a passing of title or right of possession from a seller
37 to a buyer for valuable consideration, and shall include, but is not limited
38 to, any lease or rental arrangement or other transaction wherein or whereby
39 any valuable consideration is received for the use of, or transfer or posses-
40 sion of, lewd matter.

41 SECTION 3. An emergency existing therefor, which emergency is hereby
42 declared to exist, this act shall be in full force and effect on and after
43 July 1, 2026.